

25STCV28247 25STCV28247

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-31

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C512%2C08%2F31%2F2026

Source SHA-256: ed2529f9806e14fdfbf866bfbde1c990f53749a24559cfe986f4682c621438c5

Case Number: 25STCV28247 Hearing Date: August 31, 2026 Dept: 512

HEARING DATE: Mon., August 31, 2026 JUDGE/DEPT: Mkrtchyan/512

CASE NAME: Safarov

v. Robles, et al. COMP FILED: 09-29-25

CASE NUMBER: 25STCV28247

NOTICE: OK

PROCEEDINGS: MOTION

FOR LEAVE TO INTERVENE

MOVING PARTY: Non-Party

Qualitas Insurance Company

RESP. PARTY: None

MOTION TO INTERVENE

(CCP § 387)

TENTATIVE RULING:

Non-Party Qualitas Insurance Company's
unopposed Motion for Leave to Intervene and to File an
Answer-In-Intervention is GRANTED.

Moving

party is ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of August 27, 2026 ☐ Late ☒

None

REPLY: None

filed as of August 27, 2026 ☐ Late ☒

None

ANALYSIS:

I.

Background

On September 29, 2025,

Plaintiff Sherzod Safarov ("Plaintiff") filed the instant action against Defendants Jesus Manuel Figueroa Robles ("Robles") and SCOC Services, Inc. ("SCOC") ("Defendants") and Does 1-25, alleging causes of action for Motor Vehicle and General Negligence.

On July 24, 2026,

Non-Party Qualitas Insurance Company ("Qualitas") filed the instant Motion for Leave to Intervene and to File an Answer-In-Intervention (the "Motion").

On

July 27, 2026, Plaintiff filed a Notice of Non-Opposition to the Motion.

No Opposition to the

Motion has been filed.

II.

Legal

Standard

Code of Civil Procedure, section 387,
subdivisions (c) and (d) provide:

(c) A nonparty shall petition the
court for leave to intervene by noticed motion or ex parte application. The
petition shall include a copy of the proposed complaint in intervention or
answer in intervention and set forth the grounds upon which intervention rests.

(d) (1) The court shall, upon
timely application, permit a nonparty to intervene in the action or proceeding
if either of the following conditions is satisfied:

(A) A provision of law confers an
unconditional right to intervene.

(B) The person seeking
intervention claims an interest relating to the property or transaction that is
the subject of the action and that person is so situated that the disposition
of the action may impair or impede that person's ability to protect that
interest, unless that person's interest is adequately represented by one or
more of the existing parties.

(2) The court may, upon timely
application, permit a nonparty to intervene in the action or proceeding if the
person has an interest in the matter in litigation, or in the success of either
of the parties, or an interest against both.

(Code Civ. Proc.,
§ 387, subds. (c), (d).)

Whether the petitioner has an interest
in the matter in litigation is a question of fact that must be determined by
the court before leave to file is granted. (See *Muller v. Robinson*
(1959) 174 Cal.App.2d 511, 515.) The burden rests on the one seeking to
intervene to show that this is a proper case for intervention. (*Id.*, at
p. 515.)

III.

Discussion

Qualitas states that SCOC “is not participating in its defense and is furthermore a suspended corporation according to the California Secretary of State. Qualitas ... as its insurer, has a direct and immediate interest in this litigation.” (Motion, pp. 3, 5, Lawrence Decl., ¶¶ 2, 4.) Further, “[d]espite repeated attempts by Stone Kalfus LLP [the insurance-appointed counsel for SCOC] to facilitate curing the corporate suspension and obtain a certificate of revivor for SCOC, no such cure or certificate of revivor could be obtained.” (Motion, p. 3, Lawrence Decl., ¶ 3.) Finally, Qualitas states that “[t]he corporate suspension of SCOC prevents Qualitas from mounting a proper defense of SCOC against Plaintiff’s suit, which exposes SCOC and Qualitas to a default or other judgment, pursuant to Insurance Code § 11580. Accordingly, Qualitas has a direct and immediate interest in this litigation because it could be required to satisfy a judgment entered against SCOC as its insured. Moreover, adding Qualitas as an intervenor will not enlarge the issues in the case, as it seeks only to step into the shoes of its insured, SCOC.” (Motion, Lawrence Decl., pp. 3-4.)

Here, Qualitas has an interest in the outcome of this action because it insures SCOC and will face direct liability if it is not permitted to intervene. (See *Reliance Ins. Code v. Superior Court* (2000) 84 Cal.App.4th 383, 386 [“An insurer’s right to intervene in an action against the insured, for personal injury or property damage, arises as a result of Insurance Code section 11580. Section 11580 provides that a judgment creditor may proceed directly against any liability insurance covering the defendant, and obtain satisfaction of judgment up to the amount of the policy limits”].) Qualitas represents that SCOC is a suspended entity who is not defending this action, which thus necessitated the instant Motion, and such circumstances are permissible grounds on which to grant a motion to intervene. (See *id.*, at p. 387.) Finally, the Motion is timely as default judgment has not yet been entered against SCOC. (See *id.*, at pp. 386-387 [“[W]here the insurer may be subject to a direct action under Insurance Code section 11580 by a judgment creditor who has or will obtain a default judgment in a third party action against the insured, intervention is appropriate”].)

Furthermore, the Motion includes a proposed answer in intervention. (See Motion, Lawrence Decl., Exh. A.)

Finally, the Court notes that

Plaintiff does not oppose Qualitas' intervention. (See Notice of Non-Opp.)

Accordingly, the unopposed Motion

is GRANTED.

IV.

Conclusion

& Order

For the foregoing reasons, Non-Party

Qualitas Insurance Company's unopposed Motion for Leave to Intervene and

to File an Answer-In-Intervention is GRANTED.

Moving

party is ordered to give notice.